

Authority for Personal Data
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autoriteitpersoonsgegevens.nl
The Minister for Primary and Secondary Education and Media
Mr. Drs. A. Slob
P.O. Box 16375
2500 BJ The Hague

Date

January 27, 2021

Our reference

z2020-20574

Your letter dated

December 1, 2020

Your reference

WJZ/26174925

Subject

Advice on the draft for the Act safeguarding home education

Dear Mr. Slob,

By letter dated December 1, 2020, the Authority for Personal Data (AP) was consulted pursuant to the provisions of Article 36, paragraph 4, of the General Data Protection Regulation (GDPR) regarding the draft proposal for the Act amending the Compulsory Education Act 1969 and the Act on Educational Supervision containing additional provisions regarding the exemption referred to in Article 5, under b, of the Compulsory Education Act 1969 (Act safeguarding home education) (hereinafter: the draft). On December 17, 2020, Chapter 8 Data Protection and Privacy of the explanatory memorandum was supplemented.

The AP has a comment on the draft and advises that this be taken into account.

Scope of the draft

In the current situation, parents must inform the mayor and aldermen of the invocation of the exemption based on directional objections. The exemption relieves parents of the obligation to enroll the minor in a school. The current legislation does not stipulate that alternative education must be provided to minors for whom an exemption applies. The government sees it as its task to ensure that no child is denied the right to education and wants to ensure that all minors receive education of sufficient quality. Therefore, parents are required to demonstrate that they are providing education that meets quality requirements and must prepare an educational plan, which they must submit to the inspection. When the inspection issues a declaration of no objection, parents can invoke the exemption from the municipality. Subsequently, parents must prepare an educational plan annually, which they send to the inspection.

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Grounds for exception for processing special personal data

The draft contains two provisions regarding the processing of personal data revealing religious or

philosophical beliefs. These are special personal data within the meaning of Article 9, paragraph 1, of the GDPR.

The first provision concerns the notification by parents to the college of mayor and aldermen. The Compulsory Education Act currently stipulates that this notification must include a declaration that there are substantial objections to the direction of the education at all schools or institutions located within reasonable distance from the residence where the minor could be placed.¹ The draft adds that the notification must also include a description of the content of the directional objections.²

Secondly, it is added to the Act on the Register of Educational Participants that personal data revealing religious or philosophical beliefs may be part of the exemption data.³

The processing of special personal data is prohibited under Article 9, paragraph 1, of the GDPR, unless there is an exception as referred to in Article 9, paragraph 2, of the GDPR. The only exception that could apply in this case is part g:

the processing is necessary for reasons of substantial public interest, based on Union law or national law, whereby proportionality with the pursued objective is ensured, the essential content of the right to the protection of personal data is respected, and appropriate and specific measures are taken to protect the fundamental rights and interests of the data subject.

The explanatory memorandum must contain a justification for the applicability of this exception and the specific safeguards that are involved in that context. It is important that a description of the content of the directional objections may contain detailed information about the religious or philosophical beliefs of the individuals involved. This inherently constitutes a greater infringement on the personal sphere of the individuals compared to the current declaration. It must be assessed whether this greater infringement is still proportionate to the pursued objective.

The AP advises to substantiate the exception in the explanatory memorandum.

Public disclosure of the advice

1 Article 8, paragraph 1, of the Compulsory Education Act 1969.

2 Article I, under D, of the draft. According to the explanatory memorandum, this enables the compulsory education officer to better assess whether the objections concern the direction of the education (p. 16).

3 Article III, under B, of the draft. This data is provided exclusively to the inspection for the purpose of supervision.

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The AP intends to make this advice public on the website www.autoriteitpersoonsgegevens.nl as soon as the text of the (amended) draft is made public. The AP would like to be informed of the expected timing of the public disclosure as soon as this is known.

Yours sincerely,

Authority for Personal Data,

drs. C. E. Mur

Board Member